

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

BETWEEN

**BARLOWORLD EQUIPMENT SOUTHERN AFRICA, A DIVISION OF BARLOWORLD
SOUTH AFRICA PROPRIETARY LIMITED**

(A COMPANY INCORPORATED IN ACCORDANCE WITH THE LAWS OF THE
REPUBLIC OF SOUTH AFRICA UNDER REGISTRATION NUMBER 1946/021661/07)

(“BARLOWORLD”)

AND

[INFINITY BUSINESS DYNAMICS PTY LTD]

(A COMPANY INCORPORATED IN ACCORDANCE WITH THE LAWS OF **[LESOTHO]**
UNDER REGISTRATION NUMBER **[A2023/5840]**)

(“[INFINITY BUSINESS DYNAMICS]”)

TABLE OF CONTENTS

1. DEFINITIONS.....	3
2. UNDERTAKING	3
3. DURATION.....	4
4. STANDARD OF CARE	4
5. EXCLUDED INFORMATION	4
6. TITLE	5
7. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION	5
8. PERMITTED DISCLOSURES.....	5
9. CESSION.....	6
10. INDEMNITY.....	6
11. NO WARRANTY	6
12. ARBITRATION	6
13. ADDRESSES FOR LEGAL PROCESS AND NOTICES	7
14. GENERAL	8
SIGNATURE PAGE	10

1. DEFINITIONS

In this agreement, including the preamble, unless the context otherwise requires:

- | | | |
|-----|----------------------------|--|
| 1.1 | “Affiliate” | with respect to any entity, means any other entity which: <ul style="list-style-type: none"> (a) is a subsidiary or holding company or a subsidiary of the holding company of such entity; and/or (b) controls, is controlled by or is under common control with such entity; |
| 1.2 | “Confidential Information” | means all information of whatsoever nature relating to the Disclosing Party and/or its Affiliates including, but without being limited thereto, technical, commercial financial and marketing data, trade secrets, drawings, methods, processes and procedures, customers and suppliers, business activities and Intellectual Property, and other information in whatever form (electronic or otherwise) which comes into possession or under the control of the Receiving Party, in the course of its negotiations, involvement and discussions with the Disclosing Party, whether such confidential information is formally designated as confidential or not; |
| 1.3 | “the Disclosing Party” | means the Party who is disclosing the Confidential Information to the Receiving Party; |
| 1.4 | “Intellectual Property” | means all rights (including vested, contingent or future rights), title, interest in or in relations to or arising out of all intellectual property rights including, but not limited to, any know-how (not in the public domain), invention (whether or not patented), design, trade mark, patent, trade dress, service mark or copyright material (whether or not registered), goodwill, processes, process methodology and all other identical or similar intellectual property as may exist anywhere in the world and any applications for protection or registration of such intellectual property and all renewals and extensions thereof that a Party may be entitled to; |
| 1.5 | “the Parties” | means the Disclosing Party and the Receiving Party; |
| 1.6 | “Permitted Recipient(s)” | means employees, directors, officers, advisors, agents and Affiliates of the Receiving Party; |
| 1.7 | “the Receiving Party” | means the party receiving the Confidential Information from the Disclosing Party. |

2. UNDERTAKING

- 2.1 The Parties are entering into certain discussions relating to the following transaction(s), [•].
- 2.2 The Receiving Party undertakes in favour of the Disclosing Party that it:



- 2.3 shall treat the Confidential Information as strictly private and confidential and shall not disclose it to any other party;
- 2.4 shall not duplicate nor use by any means, either directly or indirectly, nor make any adaptations or translations of any such information without obtaining the prior written consent of the Disclosing Party;
- 2.5 shall not make any use of the Confidential Information, other than in connection with this agreement or any subsequent agreement which may be entered into between the Parties, and thereafter shall make no further use, of any nature whatsoever, of the Confidential Information.

3. DURATION

- 3.1 This agreement will commence on the date of its signature and shall continue for a period of **36 (thirty-six) months** from that date or until the Confidential Information loses its confidential nature by becoming generally known, whichever is earlier.

4. STANDARD OF CARE

The Receiving Party agrees that it shall protect and procure the protection of the Confidential Information disclosed pursuant to the provisions of this agreement using the same standard of care that it applies to its own proprietary, secret or Confidential Information (or a reasonable standard, whichever is a higher or better standard) and that the Confidential Information shall be stored and handled in such a way as to prevent any unauthorised disclosure thereof.

5. EXCLUDED INFORMATION

The obligations of the Receiving Party pursuant to the provisions of this agreement shall not apply to any Confidential Information which:

- 5.1 was in the public domain prior to its disclosure by the Disclosing Party to the Receiving Party or subsequently became part of the public domain by publication, otherwise than by a wrongful act or breach of this agreement by the Receiving Party or any person to whom the Disclosing Party disclosed it; or
- 5.2 is disclosed by the Receiving Party to satisfy the order of a court of competent jurisdiction or to comply with the provisions of any law or regulation in force from time to time and having jurisdiction over the Receiving Party; provided that in these circumstances, the Receiving Party shall advise the Disclosing Party in writing prior to such disclosure to the extent it is entitled to do so and has a reasonable opportunity to do so, to enable the Disclosing Party to take whatever steps it deems necessary to protect its interests in this regard; provided further that the Receiving Party will disclose only that portion of the Confidential Information which it is legally required to disclose and the Receiving Party will use its reasonable endeavours to protect the confidentiality of such Confidential Information to the widest extent possible in the circumstances; or
- 5.3 was lawfully in the Receiving Party's possession prior to its disclosure by the Disclosing Party to the Receiving Party; or
- 5.4 was or is subsequently supplied to the Receiving Party by a third party otherwise than in breach of a similar undertaking in favour of the Disclosing Party; or
- 5.5 is legally owned or possessed by any third party or which is subject to the patents or intellectual property rights of any third party; or

- 5.6 is disclosed to a third party pursuant to the prior written authorisation of the Disclosing Party;
- 5.7 is or has been lawfully published by any third party.

6. TITLE

- 6.1 All Confidential Information disclosed by the Disclosing Party to the Receiving Party is acknowledged by the Receiving Party:
 - 6.1.1 to be confidential and proprietary to the Disclosing Parties; and
 - 6.1.2 not to confer any rights of whatever nature in such Confidential Information to the Receiving Party.
- 6.2 Nothing in this agreement shall grant the Receiving Party any right or license to use any Intellectual Property rights contained in the Confidential Information.

7. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

If the Disclosing Party so requests in writing, the Receiving Party shall:

- 7.1 destroy or return to the Disclosing Party all original and copy documents containing Confidential Information (other than analyses, studies, compilations and other materials derived from the Confidential Information);
- 7.2 destroy all original and copy documents containing analyses, studies, compilations and other materials derived from the Confidential Information and permanently remove all Confidential Information from any computer, disk or other device containing Confidential Information,
- 7.3 and, if so requested by the Disclosing Party, the Receiving Party shall provide a certificate signed by a director of the Receiving Party confirming compliance with the obligations contained in this clause.
- 7.4 This clause shall not apply to any copies reasonably required to be retained for legal, book-keeping or other similar archival reasons.

8. PERMITTED DISCLOSURES

- 8.1 The Receiving Party may disclose the Confidential Information only to the Permitted Recipients and then only on a strictly need-to-know basis; provided that the Receiving Party shall inform all such Permitted Recipients of the existence of this agreement and Permitted Recipients shall be also subject to confidentiality agreements, similar to this one and be liable before the Receiving Party. Receiving Party shall provide the Disclosing Party with a list of such Permitted Recipients prior to disclosing the Confidential Information to them.
- 8.2 The Receiving Party shall use its best endeavours to ensure that the Permitted Recipients comply with the undertaking referred to in clause 8.1.
- 8.3 The Disclosing Party's failure to obtain receipt of the undertaking referred to in clause 8.1 shall in no way detract from the Receiving Party's obligations in terms of this agreement.



9. CESSION

- 9.1 The Receiving Party may not cede any of its rights or delegate any of its obligations in terms of this agreement without the prior written approval of the Disclosing Party.
- 9.2 The Disclosing Party may cede any of its rights or delegate any of its obligations in terms of this agreement to any of its Affiliates without the prior written approval of the Receiving Party.

10. INDEMNITY

- 10.1 The Receiving Party acknowledges and agrees that the unauthorised disclosure or use of the Confidential Information by the Receiving Party or a third party, may cause irreparable loss, harm and damage to the Disclosing Party and, accordingly, the Receiving Party indemnifies and holds the Disclosing Party harmless against direct and proven loss, action, expense, claim, harm or damage of whatsoever nature, suffered or sustained by the Disclosing Party pursuant to such breach by the Receiving Party or the Receiving Party's employees, agents or representatives of any of the provisions of this agreement.
- 10.2 The Receiving Party acknowledges that monetary damages may not be a sufficient remedy for any unauthorised disclosure of the Confidential Information and that the Disclosing Parties shall be entitled, without waiving any other rights or remedies, to obtain relief in the form of an interdict or such other manner as may be deemed proper by a court of competent jurisdiction.

11. NO WARRANTY

Unless expressly stated in writing, the Disclosing Party does not make any representation or warranty as to the accuracy, completeness or reasonableness of any of the Confidential Information and no such representation or warranty shall be implied.

12. ARBITRATION

- 12.1 Any dispute, controversy or claim which arises out of or in connection with this agreement, shall be referred to and finally resolved by arbitration under the Rules of the Association of Arbitrators (Southern Africa) or its successor, as amended from time to time (the "**Association**").
- 12.2 The arbitral tribunal shall consist of one arbitrator, to be nominated by the Chairman of the Association.
- 12.3 The arbitration shall be held in Johannesburg, South Africa. The arbitration proceedings shall be conducted in English. The arbitral tribunal's decision shall be final and binding upon the Parties.
- 12.4 The Parties' liability in respect of the costs and legal fees of the arbitration including the remuneration of the arbitrators shall be determined by the arbitral tribunal in its decision. Pending any decision of the arbitral tribunal in respect of its costs, the Parties shall bear the costs of the arbitral tribunal equally.
- 12.5 Except for any dispute relating to the enforcement of this clause, or provisional or conservatory measures, or the enforcement of an arbitral award granted pursuant to this clause, neither Party shall be entitled to commence or maintain any action in a court of law upon any matter in dispute arising from or in relation to this agreement. The Parties consent and submit to the jurisdiction of the High Court of South Africa,

South Gauteng Division in respect of all disputes between them relating to the enforcement of this arbitration clause, provisional or conservatory measures and the enforcement of any arbitral award granted pursuant to this clause.

- 12.6 All proceedings will be confidential, except as necessary to obtain enforcement of the arbitration award. Neither Party nor any arbitrator may disclose the existence, content or results of any arbitration hereunder without the prior written consent of each of the Parties.
- 12.7 The arbitration agreement set out in this clause shall survive termination, expiration and/or invalidity of this agreement.

13. ADDRESSES FOR LEGAL PROCESS AND NOTICES

- 13.1 The Parties choose for the purposes of this agreement the following addresses, telefax numbers, e-mail addresses and, for the purpose of any notices, designated officers:

13.1.1 Barloworld:

20 Industrie Road
 Isando
 1609
 Gauteng
 South Africa
 E-mail: legalnotices@bw-eq.com
 Designated officer: Executive Head:
 Legal, Risk and Compliance

13.1.2 [Infinity Business Dynamincs]:

[Lancers Road]
 [House no 16]
 [Maseru West]
 Telefax No: [+266 62554433]
 E-mail: [services@ibd.co.ls]
 Designated officer: [Managing Director]

- 13.2 Any legal process or notice to be served on either Party may be served on it at the address specified for it in clause 13.1 and it chooses that address as its domicilium citandi et executandi for all purposes under this agreement.
- 13.3 Any notice or other communication to be given to either Party in terms of this agreement shall be valid and effective only if it is given in writing, provided that any notice given by telefax or e-mail shall be regarded for this purpose as having been given in writing.
- 13.4 A notice to either Party which is delivered to the Party by hand at the address specified for such Party in clause 13.1 shall be deemed to have been received on the day of delivery, provided it was delivered during ordinary business hours, and the notice and the envelope in which it is delivered are both marked for the attention of the Party's designated officer specified in clause 13.1



- 13.5 A notice by telefax to a Party at the telefax number specified for it in clause 13.1 shall be deemed to have been received (unless the contrary is proved) within 4 (four) hours of transmission if it is transmitted during normal business hours of the receiving Party or within 4 (four) hours of the beginning of the next business day at the destination after it is transmitted, if it is transmitted outside those business hours, provided it is marked for the attention of the Party's designated officer specified in clause 13.1.
- 13.6 A notice by e-mail to a Party to the e-mail address specified for it in clause 13.1 shall be deemed to have been received (unless the contrary is proved) within 4 (four) hours of transmission if it is transmitted during normal business hours of the receiving Party or within 4 (four) hours of the beginning of the next business day at the destination after it is transmitted, if it is transmitted outside those business hours, provided it is marked for the attention of the Party's designated officer specified in clause 13.1.
- 13.7 Notwithstanding anything to the contrary in this clause 13, a written notice or other communication actually received by either Party (and for which written receipt has been obtained) shall be adequate written notice or communication to it notwithstanding that the notice was not sent to or delivered at its chosen address, provided it is marked for the attention of the Party.
- 13.8 Either Party may by written notice to the other change its address, telefax number and/or e-mail address for the purposes of clause 13.1 to any other address (other than a post office box number), telefax number or e-mail address provided that the change shall become effective on the 7th (seventh) day after the receipt of the notice.

14. GENERAL

14.1 Amendments

No amendment, interpretation or waiver of any of the provisions of this agreement shall be effective unless reduced to writing and signed by both Parties.

14.2 Enforcement

The failure to enforce or to require the performance at any time of any of the provisions of this agreement shall not be construed to be a waiver of such provision, and shall not affect either the validity of this agreement or any part hereof or the right of either Party to enforce the provisions of this agreement.

14.3 Entire Agreement

This agreement contains the entire agreement between the Parties with respect to the subject matter of this agreement and supersedes all prior agreements between the Parties, whether written or oral, with respect to the subject matter of this agreement.

14.4 Governing Law

This agreement and the relationship between the Parties in connection with the subject matter of this agreement shall be governed and determined in accordance with the laws of the Republic of South Africa.

14.5 Indulgence, waiver or abandonment

No indulgence or extension of time which either Party may grant to the other shall constitute a waiver of or, whether by estoppel or otherwise, limit any of the existing or future rights of the grantor in terms hereof, save in the event and to the extent



that the grantor has signed a written document expressly waiving or limiting such right.

14.6 Successors-in-title

This agreement shall be binding on and shall enure for the benefit of the personal representatives, liquidator or trustees and successors-in-title of the Parties hereto, as the case may be.

14.7 Remedies

No remedy conferred by this agreement is intended to be exclusive of any other remedy which is otherwise available at law, by statute or otherwise. Each remedy shall be cumulative and in addition to every other remedy given hereunder or now or hereafter existing at law, by statute or otherwise. The election of any one or more remedy by either of the Parties shall not constitute a waiver by such Party of the right to pursue any other remedy.

14.8 Costs

Save as provided for herein, each Party shall pay its own costs in relation to the negotiation and preparation of this agreement.

14.9 Counterparts

This agreement may be executed in one or more counterparts all of which shall be considered one and the same agreement and shall become effective when all the counterparts have been signed by each of the Parties to this agreement.

14.10 Severability

In the event of any one or more of the provisions of this agreement being held for any reason to be invalid, illegal or unenforceable in any respect, such invalidity, illegality or unenforceability shall not affect any other provision of this agreement, and this agreement shall be construed as if such, illegal or unenforceable provision(s) was not a part of this agreement, and the Agreement shall be carried out as nearly as possible in accordance with its original terms and intent.

SIGNATURE PAGE

Executed by **Barloworld Equipment Africa Proprietary Limited** in the presence of:

1. _____
Signature of Authorised Officer

Name of Authorised Officer (print)

Office Held (print)

Date

2. _____
Signature of Authorised Officer

Name of Authorised Officer (print)

Office Held (print)

Date

1. _____
Signature of Witness

Name of Witness (print)

Occupation (print)

Date

2. _____
Signature of Witness

Name of Witness (print)

Occupation (print)

Date

Executed by _____ in the presence of:

Signature of Authorised Officer

Name of Authorised Officer (print)

Office Held (print)

Date

Signature of Witness

Name of Witness (print)

Occupation (print)

Date